

Module: Principles of Digital Forensics and Cyber Law

Mid-Module Assignment 2: Blog Post

Investigating Cyberbullying in India: When International Boundaries Obstruct Justice

Cyberbullying has become a growing concern in India's increasingly digital society. It refers to the repeated use of electronic communication technologies to harass, threaten, intimidate or humiliate another person. Unlike traditional bullying, cyberbullying can occur continuously, reach large audiences instantly and remain accessible online long after the original incident. In India, cyberbullying-related behaviour may be addressed through provisions of the Information Technology Act 2000 and the Bharatiya Nyaya Sanhita 2023, depending on the nature of the conduct, including online harassment, stalking, threats and defamation.

One significant challenge in investigating cyberbullying is the limitation created by international investigative practices. A victim may be located in India while the offender, social media platform or digital evidence is located in another country. Cyberbullying frequently occurs on global platforms such as Instagram, Facebook, Snapchat and X, creating jurisdictional barriers for investigators. Although the harm occurs within India, the evidence required to identify offenders often exists beyond the reach of Indian law enforcement agencies.

Obtaining digital evidence from foreign technology companies can be difficult. Investigators may require subscriber information, IP addresses or account activity logs to identify offenders. However, access to such information is often governed by foreign privacy laws, corporate policies and international legal procedures. Requests commonly rely on mutual legal assistance mechanisms and cross-border cooperation, which can be slow. During these delays, offenders may delete accounts, remove evidence or create new anonymous profiles. Consequently, opportunities to identify perpetrators and secure effective investigative outcomes may be reduced.

Nevertheless, privacy protections should not simply be viewed as obstacles to investigations. Restrictions on access to personal data exist to protect fundamental rights and prevent excessive state surveillance. From a human rights perspective, unrestricted access to digital information could create risks extending beyond cybercrime investigations. Therefore, the challenge is not whether privacy protections should exist, but how authorities can investigate cyberbullying effectively while respecting civil liberties. This demonstrates the competing interests that increasingly characterise cybercrime investigations in democratic societies (United Nations Human Rights Office of the High Commissioner, 2019).

The harms caused by cyberbullying extend beyond the online environment. Victims may experience anxiety, depression, social withdrawal, reduced academic performance and loss of self-confidence (Holt, Bossler and Seigfried-Spellar, 2022). Research has also identified links between cyberbullying victimisation and emotional distress among young people (Hinduja and Patchin, 2008). These consequences affect not only individuals but also society by reducing trust in digital platforms and discouraging online participation.

Cultural and gender factors can further intensify these harms in India. Female victims are frequently targeted through sexual harassment, image-based abuse and attacks on their reputation. In conservative social environments, victims may fear stigma, victim-blaming or damage to family reputation if incidents become public. Consequently, some victims may choose not to report cyberbullying, resulting in under-reporting and allowing offenders to remain beyond the reach of investigators.

Addressing these challenges requires stronger cooperation between Indian law enforcement agencies, foreign jurisdictions and international technology companies. Faster evidence-preservation procedures, improved cross-border information-sharing mechanisms, specialised cybercrime units and stronger cooperation with technology companies could improve investigative outcomes. Cyberbullying in India is therefore not merely a technological problem, but a complex investigative challenge shaped by jurisdictional boundaries, privacy rights and social factors. Policymakers must seek solutions that strengthen international cooperation while maintaining an appropriate balance between investigative effectiveness and fundamental privacy rights.

References

Government of India (2000) *Information Technology Act 2000*. New Delhi: Government of India.

Government of India (2023) *Bharatiya Nyaya Sanhita 2023*. New Delhi: Government of India.

Hinduja, S. and Patchin, J.W. (2008) 'Cyberbullying: An exploratory analysis of factors related to offending and victimization', *Deviant Behavior*, 29(2), pp. 129–156.

Holt, T., Bossler, A. and Seigfried-Spellar, K. (2022) *Cybercrime and Digital Forensics*. 3rd edn. New York: Routledge.

United Nations Human Rights Office of the High Commissioner (2019) *The Right to Privacy in the Digital Age*. Available at: <https://www.ohchr.org> (Accessed: 22 June 2026).

Word Count: 545 (excluding title and references)